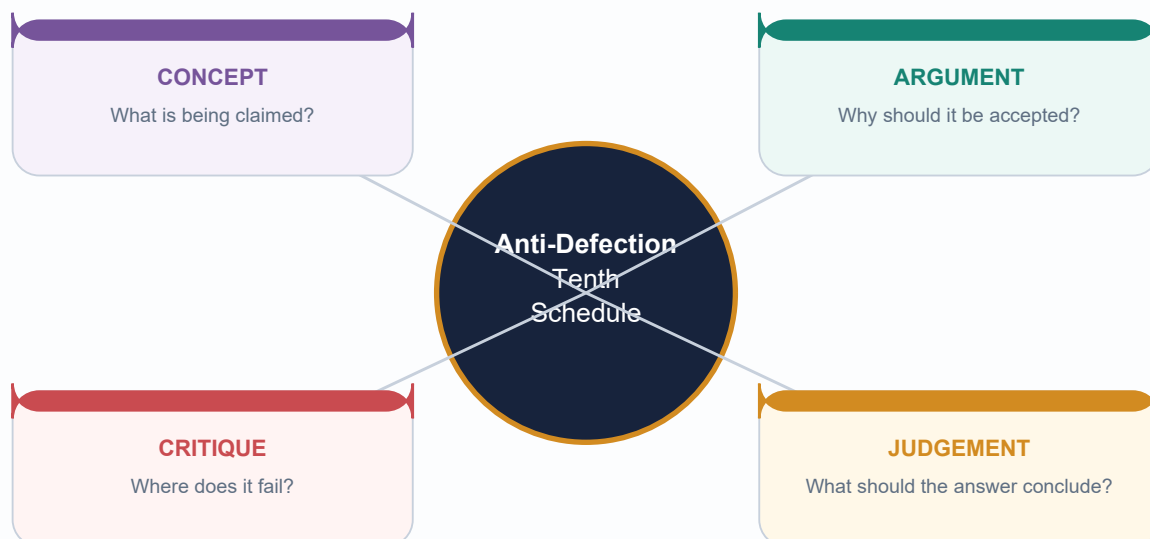


UPSC GS-II POLITY

The Anti-Defection Law (Tenth Schedule; Articles 102 & 191)

Integrated Basic + Advanced Course

10 deep-learning modules | 52nd Amendment to the Independent-Tribunal Debate
Timelines, disqualification maps, comparisons, UPSC traps and Mains frameworks
Prepared from the verified Polity knowledge base and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Origin and Evolution: From the 52nd Amendment to Judicial Oversight

GS-II Polity -
Constitutional
History

NEWS TRIGGER

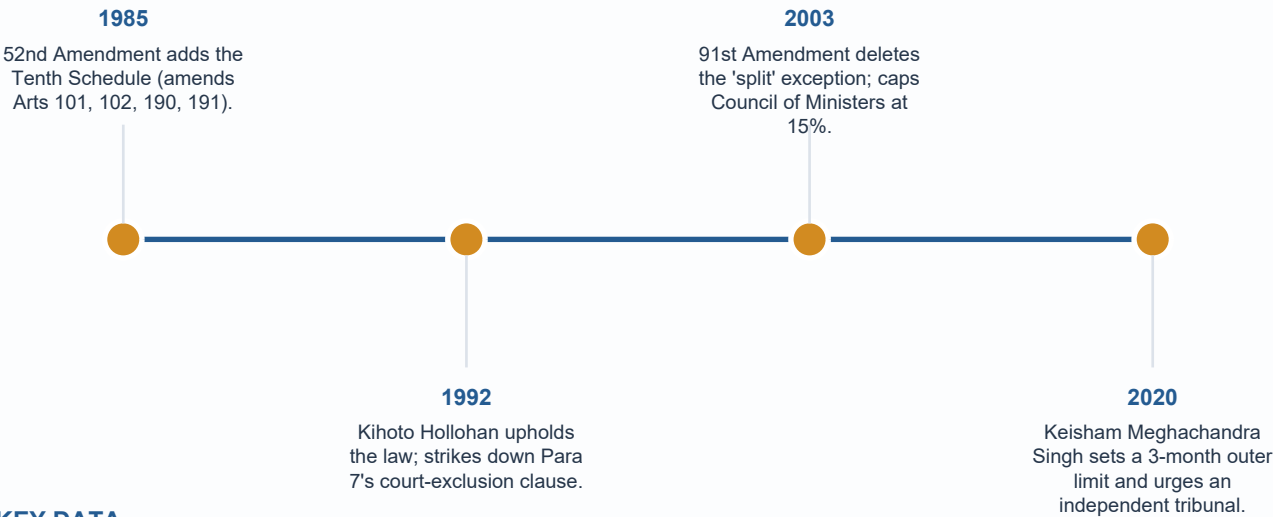
Every major defection controversy — from Karnataka to Maharashtra — is ultimately argued against the same 1985 constitutional amendment and the case law that has grown around it.

INTRO & ORIGIN

The anti-defection law was inserted into the Constitution as the Tenth Schedule in 1985 to punish legislators who switch parties or defy the party whip. Its content and enforcement have since been reshaped by one further amendment and two landmark Supreme Court judgments.

The 52nd Amendment Act, 1985 added the Tenth Schedule by amending Articles 101, 102, 190 and 191; the 91st Amendment, 2003 later removed its most-abused exception.

EVOLUTION OF THE ANTI-DEFECTION LAW



KEY DATA

Article Amended	Change Made by the 52nd Amendment, 1985
101	Vacation of seats consequent to disqualification (Parliament)
102	Disqualification of MPs — cross-refers to the Tenth Schedule
190	Vacation of seats consequent to disqualification (State Legislature)
191	Disqualification of MLAs — cross-refers to the Tenth Schedule

STATIC THEORY

- The Tenth Schedule was added by the 52nd Amendment, 1985, and operates through cross-references in Articles 102 and 191 (and 101, 190 on vacation of seats).
- Its core purpose is to disqualify legislators who voluntarily give up party membership or defy a party whip without permission.
- Two later interventions reshaped it: the 91st Amendment (2003), which removed the split defence, and the judiciary, which read in both review and a decision timeline.
- The law's history shows a shift from a purely legislative fix (1985) to a jointly legislative-judicial framework (post-1992, post-2020).

MEMORY HOOK

52nd Amdt (1985) = BIRTH | 91st Amdt (2003) = SPLIT REMOVED | 2020 = TIMELINE READ IN.

MUST-KNOW FACTS

1. The 52nd Amendment Act, 1985 inserted the Tenth Schedule.
2. It amended Articles 101, 102, 190 and 191.
3. The 91st Amendment, 2003 deleted the 'split' exception.

UPSC TRAPS

WRONG: The anti-defection law is in the Ninth Schedule.

CORRECT: It is the Tenth Schedule, added by the 52nd Amendment, 1985.

WRONG: The Tenth Schedule has never been amended since 1985.

CORRECT: The 91st Amendment, 2003 significantly altered it by removing the split exception.

MAINS ANGLE

Trace the law's evolution to argue that anti-defection regulation in India has never been static — it keeps being re-calibrated by amendment and by judicial intervention.

STUDY LINK

Polity -> Anti-Defection Law -> Kihoto Hollohan (1992)

HIGH

2. Grounds of Disqualification: Party Member, Independent, Nominated

GS-II Polity -
Tenth Schedule

NEWS TRIGGER

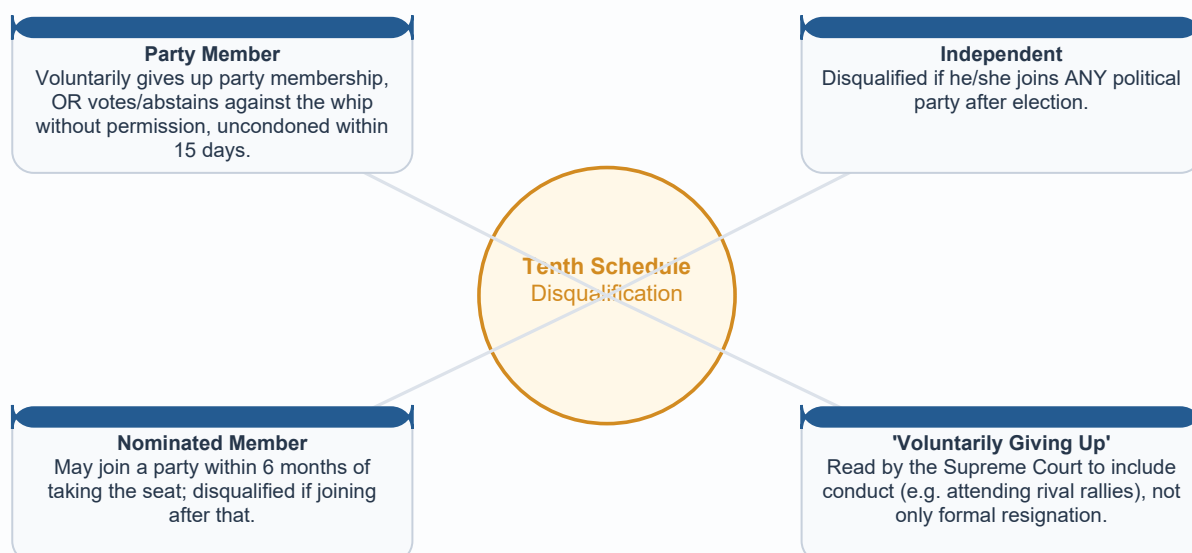
UPSC Prelims 2022 directly tested whether a nominated legislator can join a party within six months, and whether the law fixes a decision timeframe for the presiding officer.

INTRO & ORIGIN

The Tenth Schedule applies different disqualification triggers depending on how a member entered the House — as a party candidate, an independent, or a nominated member.

This differentiated design recognises that independents and nominees have a different relationship to party discipline than elected party candidates.

WHO GETS DISQUALIFIED, AND WHEN



KEY DATA

Member Type	Disqualified If...
Party member	(a) Voluntarily gives up party membership, OR (b) votes/abstains against the whip without prior permission, not condoned within 15 days
Independent	Joins any political party after election
Nominated	Joins a party after 6 months of taking the seat (may join freely within 6 months)

STATIC THEORY

- 'Voluntarily giving up membership' is broader than resignation — courts have inferred it from a member's conduct, such as publicly supporting a rival party.
- The whip-defiance ground requires both an actual vote/abstention against direction AND the absence of condonation within 15 days.
- Independents face a stricter rule than nominees: joining any party at all disqualifies them, whereas nominees get a fixed 6-month grace window.
- There is no constitutionally or statutorily prescribed time limit for the presiding officer to decide a disqualification petition — confirmed by UPSC Prelims 2022.

MEMORY HOOK

PARTY = whip/give-up | INDEPENDENT = any party = out | NOMINATED = 6-month window.

MUST-KNOW FACTS

1. A nominated member may join a political party within six months of taking his/her seat, but not after.
2. The Tenth Schedule itself prescribes no timeframe within which the presiding officer must decide a defection case (UPSC Prelims 2022 verified fact).
3. 'Voluntarily giving up' membership can be inferred from conduct, not just formal resignation.

UPSC TRAPS

WRONG: A nominated legislator cannot join any political party within six months of being appointed.

CORRECT: A nominated member CAN join a party within six months; disqualification applies only after that period (UPSC Prelims 2022 tested this exact reversal).

WRONG: The law fixes a strict time limit for the presiding officer to decide a defection case.

CORRECT: The Tenth Schedule itself prescribes no such timeframe (only later case law reads one in).

MAINS ANGLE

Use the differentiated treatment of party members, independents and nominees to explain why the law's design reflects different assumptions about political affiliation and accountability.

STUDY LINK

Polity -> Anti-Defection Law -> Merger vs Split exception

HIGH

3. The Only Surviving Exception: Merger (2/3) vs the Deleted Split (1/3)

GS-II Polity -
Group Defections

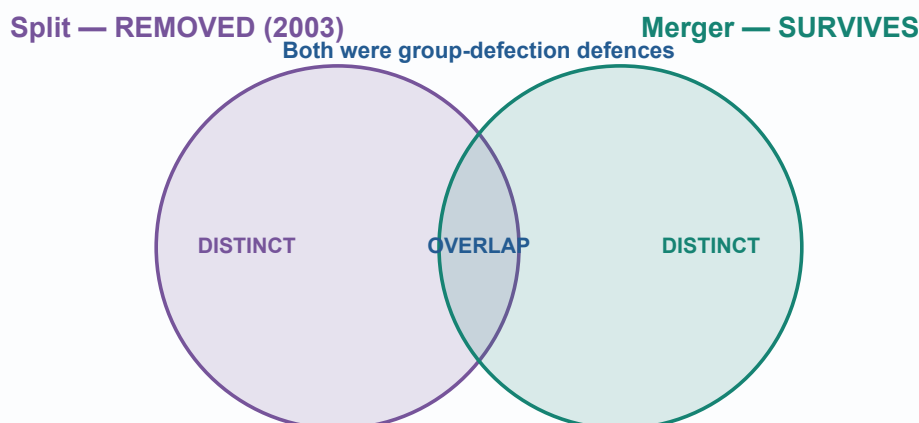
NEWS TRIGGER

Every large-scale legislative party split — including the 2022 Shiv Sena split in Maharashtra — is tested against this single surviving exception.

INTRO & ORIGIN

Originally, the Tenth Schedule allowed two group-defection defences: a 'split' by one-third of a legislature party, and a 'merger' by two-thirds. Only the merger defence survives today.

The 91st Amendment, 2003 deleted the split exception because it was widely used to engineer and legitimise defections by manufacturing one-third breakaway factions.

SPLIT (REMOVED) VS MERGER (SURVIVING) EXCEPTION**Split — REMOVED (2003)**

- Required only 1/3 of the legislature party
- Frequently misused to legitimise defections
- Deleted by the 91st Amendment, 2003

Both were group-defection defences

- Apply only to whole groups, not lone defectors
- Decided by the presiding officer

Merger — SURVIVES

- Requires at least 2/3 of the legislature party
- Dissenting members may function as a separate group without disqualification
- Only group-defection defence left today

After 2003, a breakaway group must reach a two-thirds threshold to avoid disqualification — one-third splits no longer qualify.

STATIC THEORY

- The pre-2003 Tenth Schedule allowed a 'split' defence if one-third of a legislature party broke away together.
- That split exception was removed by the 91st Amendment, 2003, precisely because it enabled organised defections dressed up as splits.
- Only the merger exception survives: if at least two-thirds of a legislature party agree to merge with another party, none of them is disqualified.
- Members who do not accept a valid merger may function as a separate group in the House without being disqualified.

MEMORY HOOK

ONLY MERGER (2/3) SURVIVES — split (1/3) died in 2003.

MUST-KNOW FACTS

1. The split exception (one-third) was removed by the 91st Amendment, 2003.
2. The merger exception requires at least two-thirds of the legislature party.
3. Non-accepting members of a valid merger may function as a separate group without disqualification.

UPSC TRAPS

WRONG: Both split (1/3) and merger (2/3) remain valid defences today.

CORRECT: Only merger (2/3) survives; split was deleted by the 91st Amendment, 2003.

MAINS ANGLE

Argue that removing the split exception closed one loophole for engineered defections, but new loopholes (such as mass resignations) emerged in its place — a reform that solved one problem while leaving another open.

STUDY LINK

Polity -> Anti-Defection Law ->
Resign-and-recontest strategy

HIGH**4. Deciding Authority and Kihoto Hollohan (1992)**

GS-II Polity -
Judicial Review

NEWS TRIGGER

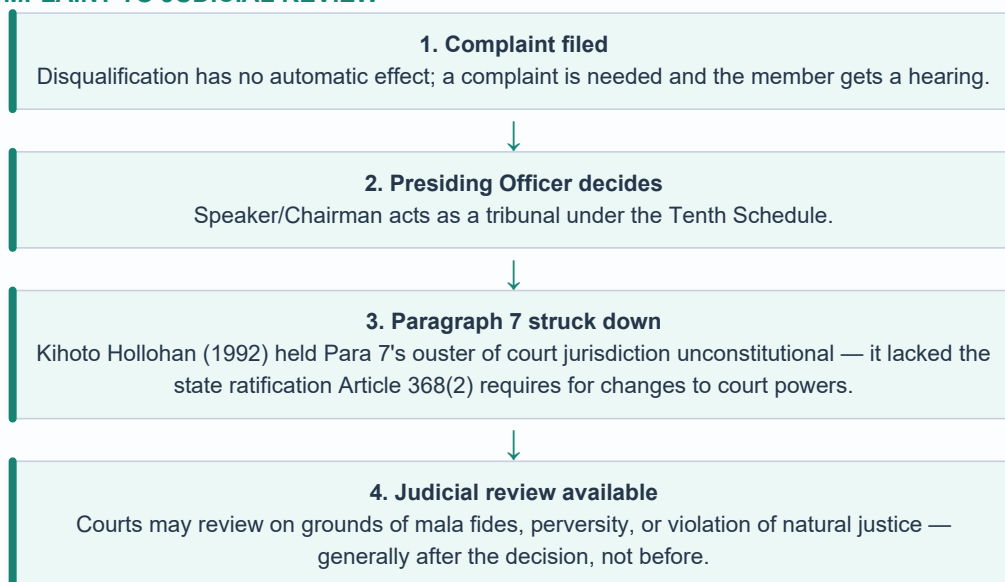
Whenever a Speaker's disqualification order is challenged in court, the analysis begins with this 1992 Constitution Bench ruling on the scope of judicial review.

INTRO & ORIGIN

Disqualification under the Tenth Schedule is decided by the presiding officer (Speaker or Chairman) of the House, but the Supreme Court has held that this decision can be reviewed by courts.

Kihoto Hollohan v. Zachillhu, 1992 Supp (2) SCC 651 (AIR 1993 SC 412), tested whether Paragraph 7 of the Tenth Schedule — which barred all court jurisdiction over disqualification — was valid.

FROM COMPLAINT TO JUDICIAL REVIEW



STATIC THEORY

- Kihoto Hollohan v. Zachillhu, 1992 Supp (2) SCC 651, upheld the Tenth Schedule's substance but struck down Paragraph 7's bar on court jurisdiction.
- Paragraph 7 fell because it changed the powers of the Supreme Court (Art 136) and High Courts (Arts 226, 227), a change requiring ratification by at least half the state legislatures under Article 368(2), which had not occurred.
- The presiding officer functions as a tribunal for this purpose, so ordinary principles of judicial review — mala fides, perversity, natural-justice violations — apply to the decision.
- Defection has no automatic legal effect; disqualification requires a complaint and a hearing before the presiding officer decides.

MEMORY HOOK

PARA 7 struck down — SPEAKER = TRIBUNAL — REVIEW after, not before.

MUST-KNOW FACTS

1. Kihoto Hollohan v. Zachillhu, 1992 Supp (2) SCC 651, is the leading case on judicial review of Tenth Schedule decisions.
2. The Supreme Court struck down Paragraph 7 (court-jurisdiction bar) for want of Article 368(2) ratification.
3. The presiding officer's decision is subject to judicial review on grounds of mala fides, perversity or breach of natural justice.

UPSC TRAPS

WRONG: The Speaker's decision under the Tenth Schedule is final and beyond judicial review.

CORRECT: Kihoto Hollohan held it is subject to judicial review, since Para 7's ouster clause was struck down.

WRONG: Kihoto Hollohan struck down the entire Tenth Schedule.

CORRECT: It upheld the Schedule's substance and struck down only Paragraph 7.

MAINS ANGLE

Use Kihoto Hollohan to discuss the limits of legislative attempts to oust judicial review, and how the basic-structure-linked power of judicial review constrained even a specialised disqualification mechanism.

STUDY LINK

Polity -> Anti-Defection Law -> Keisham Meghachandra Singh (2020)

HIGH

5. The 91st Amendment, 2003: Council of Ministers Cap and Ministerial Bar

GS-II Polity - Executive Size and Discipline

NEWS TRIGGER

Debates on 'bloated' cabinets and post-defection ministerial appointments both trace back to the same 2003 constitutional cap.

INTRO & ORIGIN

Beyond removing the split exception, the 91st Amendment, 2003 capped the size of the Council of Ministers and barred disqualified defectors from becoming ministers until re-election.

These changes responded to the 'Aaya Ram Gaya Ram' era, where defections were often rewarded with ministerial berths, incentivising further defections.

91ST AMENDMENT: COUNCIL OF MINISTERS SIZE LIMITS



The Council of Ministers, including the CM/PM, cannot exceed 15% of House strength; states must still have at least 12 ministers.

KEY DATA

91st Amendment, 2003 — Change	Effect
Deleted the split exception	Only merger (2/3) remains a valid group-defection defence
Capped Council of Ministers	15% of House strength (Union and states); states minimum 12 ministers
Barred disqualified defectors from ministership	Until re-election or the term ends

STATIC THEORY

- The 91st Amendment capped the Council of Ministers at 15% of the total House strength, at both the Union and state levels.
- States must still have a minimum of 12 ministers, even if 15% of their assembly strength is smaller.
- A disqualified defector is barred from being appointed a minister (or any remunerative political post) until re-election or until the House term ends.
- These reforms were recommended by the Dinesh Goswami Committee (1990), the Law Commission's 170th Report (1999) and the NCRWC (2002).

MEMORY HOOK

15% CAP + 12 MINIMUM (states) + NO MINISTERSHIP for defectors.

MUST-KNOW FACTS

1. The 91st Amendment capped the Council of Ministers at 15% of House strength.
2. States must have a minimum of 12 ministers.
3. Disqualified defectors are barred from ministership until re-election or the term ends.

UPSC TRAPS

WRONG: The Council of Ministers cap under the 91st Amendment is 10%.

CORRECT: The cap is 15%, with a minimum of 12 ministers in states.

MAINS ANGLE

Connect the CoM cap and ministerial bar to the incentive structure of defection — the 91st Amendment tried to remove the reward (a ministerial post) that made defection attractive.

STUDY LINK

Polity -> Anti-Defection Law -> PM and Council of Ministers

HIGH**6. Keisham Meghachandra Singh (2020): The Three-Month Norm**

GS-II Polity -
Judicial Reform
of Procedure

NEWS TRIGGER

Prolonged Speaker inaction on disqualification petitions — a repeated complaint in state assemblies — led the Supreme Court to intervene directly on timelines in 2020.

INTRO & ORIGIN

Since the Tenth Schedule itself sets no deadline for deciding disqualification petitions, the Supreme Court read in a working time limit and questioned whether the Speaker is the right decision-maker at all.

Keisham Meghachandra Singh v. Hon'ble Speaker, Manipur Legislative Assembly, 2020 INSC 65 (Civil Appeal No. 547 of 2020), decided 21 January 2020.

THE KEISHAM MEGHACHANDRA SINGH (2020) INTERVENTION**1. Problem identified**

The Tenth Schedule prescribes no timeframe for the presiding officer's decision, enabling indefinite delay.

**2. Three-month outer limit read in**

Absent exceptional circumstances with good reason, petitions must be decided within three months of filing.

**3. Independent tribunal recommended**

SC suggested Parliament consider a permanent tribunal headed by a retired SC/HC judge, since Speakers belong to political parties.

**4. Status**

Parliament has not yet acted on the tribunal recommendation; the three-month norm operates as judicial guidance.

STATIC THEORY

- Keisham Meghachandra Singh (2020 INSC 65) held that, absent exceptional reasons, a three-month outer limit should apply to deciding Tenth Schedule petitions.
- The Court flagged an institutional concern: the Speaker, as a member of a political party, may not always appear impartial in defection disputes involving that party.
- It recommended that Parliament consider a permanent, independent tribunal (headed by a retired Supreme Court or High Court judge) instead of the Speaker.
- This recommendation does not amend the Tenth Schedule itself; the presiding officer remains the decision-maker in law unless Parliament acts.

MEMORY HOOK

KEISHAM (2020) = 3-MONTH NORM + TRIBUNAL SUGGESTION (not yet enacted).

MUST-KNOW FACTS

1. Keisham Meghachandra Singh v. Hon'ble Speaker, Manipur LA, 2020 INSC 65, read in a three-month outer limit for deciding disqualification petitions.
2. The Supreme Court recommended an independent tribunal headed by a retired judge instead of the Speaker.
3. This recommendation has not been enacted by Parliament as a constitutional or statutory change.

UPSC TRAPS

WRONG: The Tenth Schedule itself now legally requires a decision within three months.

CORRECT: The three-month norm comes from the Supreme Court's 2020 direction, not from the text of the Tenth Schedule.

WRONG: Parliament has already created an independent tribunal for defection cases.

CORRECT: This remains only a Supreme Court recommendation; no such tribunal has been enacted.

MAINS ANGLE

"Should the power to decide defections be shifted from the Speaker to an independent tribunal or the ECI?" Use Keisham Meghachandra Singh's reasoning on Speaker impartiality to structure the argument.

STUDY LINK

Polity -> Anti-Defection Law -> Subhash Desai (2023, Maharashtra)

HIGH

8. Case Study: Resign-and-Recontest and the Maharashtra Precedent

GS-II Polity -
Applied Case
Study

NEWS TRIGGER

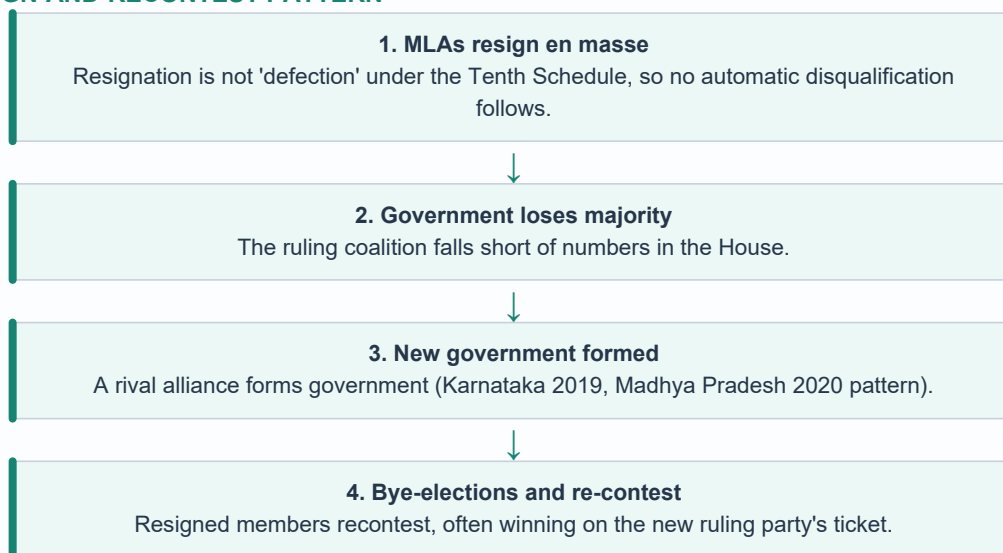
The 2019 Karnataka and 2020 Madhya Pradesh government changes, and the 2022 Shiv Sena split in Maharashtra, are the standard applied examples of the Tenth Schedule's practical limits.

INTRO & ORIGIN

Legislators have used mass resignation — rather than open defection — to bring down governments without triggering immediate Tenth Schedule disqualification, since a valid resignation is not a disqualification event.

This 'resign-and-recontest' pattern exploits the gap between resigning a seat (which the Tenth Schedule does not penalise) and formally defecting while retaining the seat (which it does).

THE RESIGN-AND-RECONTEST PATTERN



STATIC THEORY

- Resignation from a legislative seat is legally distinct from defection; the Tenth Schedule targets members who retain their seat while abandoning their party or defying the whip.
- Mass resignation therefore sidesteps the disqualification mechanism entirely, even though its political effect mirrors defection.
- In the 2022 Maharashtra crisis (Subhash Desai v. Principal Secretary, Governor of Maharashtra, (2023) 6 SCC 481 / 2023 INSC 516), the Supreme Court criticised the Speaker's delay in deciding disqualification petitions and referred the correctness of Nabam Rebia v. Deputy Speaker (2016) to a larger bench.
- The Supreme Court in the Maharashtra case reaffirmed that, post-2003, a split in a party is not a valid defence — only a Paragraph 4 merger is.

MEMORY HOOK

RESIGN ≠ DEFECT — the Tenth Schedule does not disqualify a valid resignation.

MUST-KNOW FACTS

1. Resignation from a seat is not treated as defection under the Tenth Schedule.
2. Subhash Desai v. Governor of Maharashtra, (2023) 6 SCC 481, criticised the Speaker's delay and referred Nabam Rebia (2016) to a larger bench.
3. The Maharashtra case reaffirmed that only a merger (not a split) is a valid defence after the 91st Amendment, 2003.

UPSC TRAPS

WRONG: Mass resignation by MLAs is itself a form of disqualifiable defection.

CORRECT: Resignation is legally distinct from defection; it does not trigger Tenth Schedule disqualification.

WRONG: The Maharashtra Supreme Court judgment restored the original government.

CORRECT: The Court found the floor-test process flawed but declined to restore the government because the Chief Minister had resigned voluntarily before facing the floor test.

MAINS ANGLE

"The anti-defection law banned retail defection but legalised wholesale defection." Use the resign-and-recontest pattern and the Maharashtra case to critically examine this statement.

STUDY LINK

Polity -> Anti-Defection Law -> Governor and CM (floor test)

MEDIUM UPSC RELEVANCE

MEDIUM

7. Reform Debates: Independent Tribunal vs the Speaker as Adjudicator

GS-II Polity -
Institutional
Reform

NEWS TRIGGER

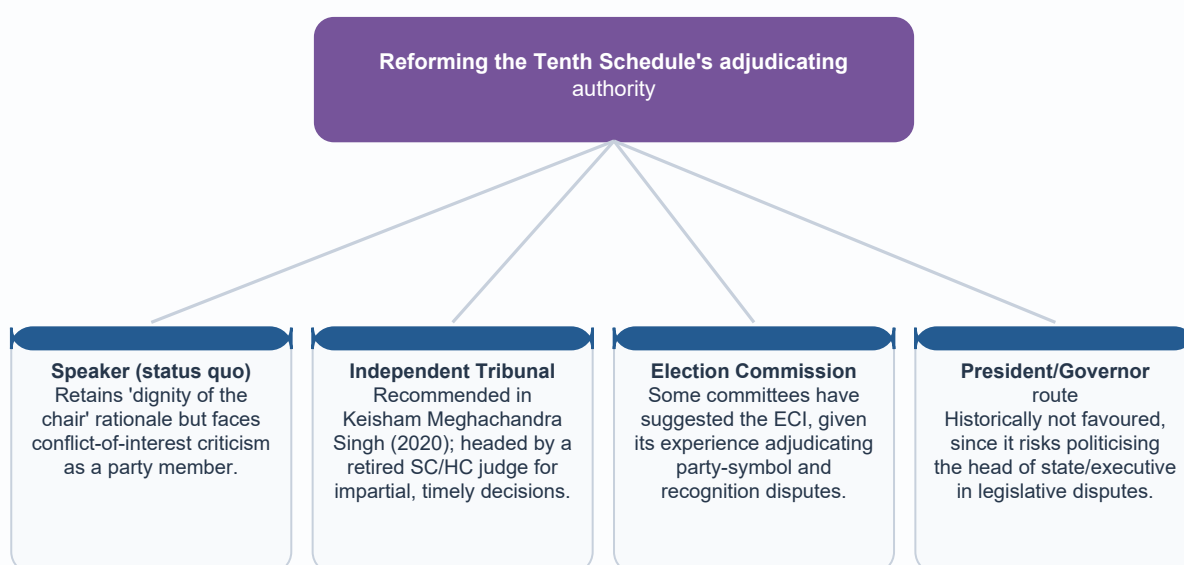
Repeated Speaker delays across states — most visibly in Maharashtra (2022-23) — keep alive the debate on who should adjudicate defection disputes.

INTRO & ORIGIN

Multiple institutional alternatives have been proposed to replace or supplement the Speaker as the decision-maker on disqualification, each with different accountability trade-offs.

The debate intensified after Kihoto Hollohan confirmed judicial review was possible only after the Speaker's decision, and after Keisham Meghachandra Singh flagged institutional bias concerns.

WHO SHOULD DECIDE DEFECTION DISPUTES?



STATIC THEORY

- The core institutional problem is that the Speaker, though expected to act impartially, is typically a member of a political party and may face a conflict of interest in defection disputes.
- An independent tribunal, as recommended judicially, would separate the adjudicating function from any party affiliation.
- Shifting the role to the Election Commission is debated because of its existing quasi-judicial experience with party disputes, though defection adjudication is a distinct function from registration/recognition.
- No alternative has been constitutionally adopted so far; the Speaker remains the adjudicator in law.

MEMORY HOOK

SPEAKER (status quo) vs TRIBUNAL (SC-recommended) vs ECI (debated) — none replaced yet.

MUST-KNOW FACTS

1. The Speaker remains the legal adjudicator of Tenth Schedule disqualification, despite reform proposals.
2. An independent tribunal headed by a retired judge is the most judicially endorsed alternative (Keisham Meghachandra Singh, 2020).

UPSC TRAPS

WRONG: An independent tribunal has already replaced the Speaker for defection cases.

CORRECT: This remains a proposal; the Speaker continues to be the adjudicator in law.

MAINS ANGLE

Weigh institutional independence (tribunal/ECI) against parliamentary tradition (Speaker as presiding authority) to argue for or against shifting the adjudicating power.

STUDY LINK

Polity -> Anti-Defection Law -> Election Commission and Political Parties

MEDIUM

9. Comparisons: Party Whip Discipline vs Legislator's Conscience

GS-II Polity -
Representative
Theory

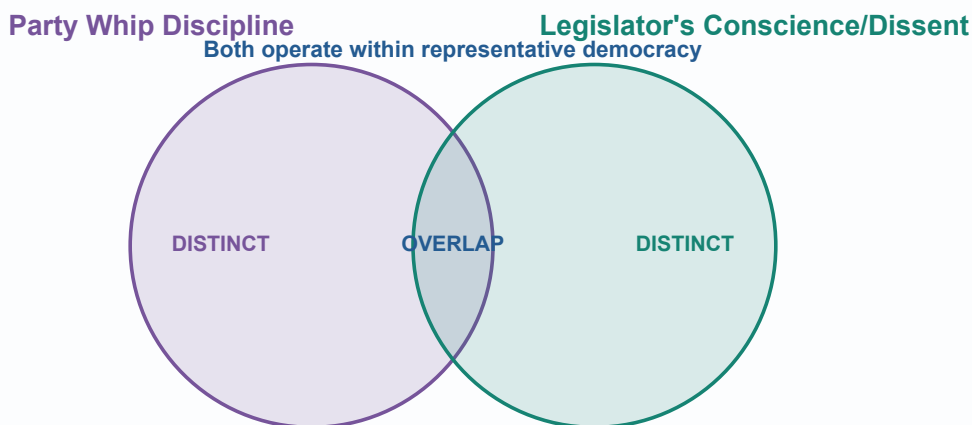
NEWS TRIGGER

Every time a legislator is disqualified for defying the whip on a non-confidence issue, the debate on whip discipline versus individual conscience resurfaces.

INTRO & ORIGIN

The Tenth Schedule enforces party discipline through the whip, but this creates tension with the classical idea that a legislator should be free to vote according to conscience on matters of principle.

Several committees have suggested narrowing the whip's disqualifying force to only confidence motions and money bills, to protect legislators' freedom to dissent on other issues.

WHIP DISCIPLINE VS LEGISLATIVE CONSCIENCE**Party Whip Discipline**

- Enforced by the Tenth Schedule
- Applies to all whipped votes today
- Maintains government stability

Both operate within representative democracy

- Legislators remain accountable to voters
- Debated in the same reform reports

Legislator's Conscience/Dissent

- Some committees propose limiting the whip to confidence/money bills
- Would let members dissent on other issues without disqualification risk
- Currently not adopted — the whip applies broadly

Reform proposals would narrow, not abolish, whip-based disqualification — the current law applies the whip broadly, not only to confidence votes.

STATIC THEORY

- Under the current Tenth Schedule, disqualification for whip defiance is not limited to confidence motions or money bills — it can, in principle, apply to any whipped vote.
- Committees examining the law have recommended confining whip-based disqualification to confidence motions and money bills, to preserve legislators' freedom of conscience on other issues.
- This proposal has not been adopted; the whip's disqualifying reach remains broad under existing law.
- The debate reflects a tension between party discipline (needed for stable government) and individual representative freedom (needed for genuine deliberation).

MEMORY HOOK

WHIP today = ALL VOTES | REFORM PROPOSAL = LIMIT to confidence/money bills only.

MUST-KNOW FACTS

1. Disqualification for whip defiance currently applies to any whipped vote, not only confidence motions or money bills.
2. Reform proposals recommend restricting the whip's disqualifying effect to confidence and money bills.

UPSC TRAPS

WRONG: Defection disqualification for whip defiance already applies only to confidence and money bills.

CORRECT: This is a reform proposal, not the current law; the whip currently applies broadly.

MAINS ANGLE

"The whip, dissent and the freedom of conscience — has the Tenth Schedule harmed intra-party democracy?" Use the confidence/money-bill limitation proposal to suggest a middle path between discipline and dissent.

STUDY LINK

Polity -> Anti-Defection Law -> Parliament (whip system)

MEDIUM

10. Democratic Accountability: Intra-Party Democracy and the Tenth Schedule

GS-II Polity -
Democratic
Theory

NEWS TRIGGER

Recurring engineered defections, despite four decades of anti-defection law, force a reassessment of what the Tenth Schedule has actually achieved for democratic accountability.

INTRO & ORIGIN

The Tenth Schedule was meant to curb opportunistic, individual ('retail') defection, but critics argue it has simply shifted the problem to organised, group-level ('wholesale') defection.

This critique draws on the law's own design: individual defectors are disqualified, but a sufficiently large, coordinated group (via merger, or via mass resignation) can achieve the same political outcome without penalty.

NET EFFECTS OF THE ANTI-DEFECTION LAW

Four Decades of the Tenth Schedule

Ended retail defection Lone legislators switching parties for personal gain are now disqualified.	Enabled wholesale defection Large, coordinated group moves (merger, or mass resignation) can achieve the same result without disqualification.
Strengthened party discipline The whip's disqualifying force keeps legislators voting with their party on most issues.	Raised concerns on legislative voice Reduced space for individual conscience votes and intra-party dissent.

STATIC THEORY

- The law succeeded in eliminating small-scale, individually motivated defection, which was its original target in the 1980s.
- It has not eliminated large-scale, organised defection, since a sufficiently large group (via a two-thirds merger, or via coordinated mass resignation) can still change a government's composition.
- Party discipline has strengthened as an unintended consequence, since legislators now face disqualification risk for most whipped dissent.
- The cumulative effect is debated as a trade-off between government stability and both intra-party democracy and individual legislative accountability to voters.

MEMORY HOOK

RETAIL DEFECTION = stopped | WHOLESALE DEFECTION = still possible.

MUST-KNOW FACTS

1. The Tenth Schedule effectively disqualifies individual, small-scale defection.
2. Large, coordinated group defections (via merger or mass resignation) can still occur without disqualification.

UPSC TRAPS

WRONG: The anti-defection law has eliminated all forms of defection in Indian politics.

CORRECT: It has eliminated small-scale defection but large, organised group defections remain possible.

MAINS ANGLE

"The recent controversy about the use of anti-defection law has raised concerns about its effectiveness in curbing the evils of defection, while ensuring the freedom of expression of legislators." Critically examine, using the retail-vs-wholesale defection framing.

STUDY LINK

Polity -> Anti-Defection Law -> Political Parties and Party System